

Court No. - 1

Case :- WRIT - C No. - 61902 of 2017

Petitioner :- Smt. Meenu Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajesh Kumar Bind

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Pankaj
Srivastava

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

Heard Sri Rajesh Kumar Bind, learned counsel for the petitioner, Miss Surangma Sharma, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the electricity company and Sri Pankaj Srivastava, learned counsel for the respondents.

This petition for writ is before us to question the correctness of recovery sought to be made from the petitioner against the electricity consumption. As per the petitioner, the claim is highly disputed and therefore the recovery sought to be made is not correct. It is also stated that no statement as to how the amount has been determined too is given. For redressal of such grievance, the remedy is available to the petitioner under para 6.5 of the Electricity Supply Code, 2005 and even as per para 6.14 the licensee is having authority to make the installments by taking into consideration all relevant facts.

Suffice to mention that learned counsel for the petitioner stated at bar the petitioner is ready and willing to deposit the entire amount, if easy installment be settled.

In light of the para 6.14 of the Electricity Supply Code, 2005 we are not inclined to entertain this petition for writ, the petitioner, however, is at liberty to avail the remedy under the Code of 2005.

The writ petition is dismissed accordingly.

Order Date :- 21.12.2017

SK Srivastava

(Ashok Kumar,J.) (Govind Mathur,J.)